

Factory 23

Terms of Service

Effective Date: June 2026 | Issued by P23 Africa Ltd

These Terms of Service govern access to and use of the Factory 23 platform, including the web application, mobile application, API, and all associated tools and services (collectively, the Platform). By accessing or using the Platform, the Client and any users authorised by the Client agree to these terms in full. If you do not agree, you must not use the Platform.

Factory 23 is operated by P23 Africa Ltd, a company registered in England and Wales. References to we, us, or P23 Africa in these terms refer to P23 Africa Ltd. References to Client, you, or your refer to the business or organisation that has registered for access to the Platform.

1. Definitions

For the purposes of these Terms:

- Platform means the Factory 23 software platform, including all web, mobile, and API components.
- Client means the business entity that has registered an account and is responsible for payment and compliance.
- Agent means any individual user authorised by the Client to access the Platform for the purposes of field operations.
- Business Record means any data entry describing a third-party business, including name, industry, address, contact information, and any associated metadata.
- Field Data means GPS traces, location data, route data, visit logs, outcome records, and any other data generated by Agent activity during use of the Platform.
- Proprietary Database means the Factory 23 database of Business Records compiled from multiple sources and maintained by P23 Africa.
- KPI means a key performance indicator set by the Client or a manager within the Platform to define field operation targets.

2. Access and Accounts

2.1 The Client is responsible for maintaining the security of all login credentials associated with their account. P23 Africa accepts no liability for unauthorised access resulting from the Client's failure to secure credentials.

2.2 The Client may authorise Agents to access the Platform. The Client is responsible for all activity carried out by Agents under their account and must ensure Agents comply with these Terms.

2.3 P23 Africa reserves the right to suspend or terminate access to the Platform where there is evidence of misuse, breach of these Terms, or non-payment.

2.4 Access to certain features may be subject to subscription tier. Features available at each tier are as described in the current pricing documentation at the time of subscription.

3. Field Data Collection and Agent Tracking

3.1 The Platform tracks Agent location continuously during active working sessions, defined as the period between an Agent checking in and checking out of the Platform. Location data is recorded whether or not an Agent has an assigned task or active route.

3.2 The Platform supports offline tracking. Where an Agent operates in an area without network connectivity, location data is logged locally on the device and synchronised with the Platform servers when connectivity is restored.

3.3 Field Data collected during Agent sessions includes but is not limited to: GPS coordinates, movement traces, route paths, visit timestamps, visit outcomes, and business records created or amended by Agents.

3.4 The Client is responsible for ensuring that Agents have been informed that their location is tracked during working sessions and that they have provided any consent required under applicable law, including under the UK GDPR, the Nigerian Data Protection Regulation (NDPR), and the Protection of Personal Information Act (POPIA) where applicable.

3.5 P23 Africa will process Agent location data in accordance with its Privacy Policy. Field Data attributable to individual Agents will be retained for the duration of the Client's subscription and deleted within 90 days of account termination unless earlier deletion is requested.

4. Business Data and the Proprietary Database

4.1 Sources of Business Data

The Proprietary Database is compiled from multiple sources including: publicly available business directories and registries, government and regulatory data, data entered by P23 Africa research staff, data submitted by Agents during field operations, and data generated through Client use of the Platform's search and discovery features.

4.2 Data Generated by Client Agents

When an Agent creates, amends, or verifies a Business Record during field operations, that record is submitted to the Platform and becomes part of the Proprietary Database. By using the Platform, the Client grants P23 Africa a perpetual, irrevocable, royalty-free licence to use, store, and process Business Records submitted by Agents for the following purposes:

- Improving the accuracy and completeness of the Proprietary Database.
- Enhancing routing intelligence and travel time estimation for African markets.
- Improving the Platform's agentic prioritisation and KPI decomposition features.
- Providing aggregated, anonymised market intelligence to other Platform users and third parties.

Business Records contributed by Agents will not be shared with other Clients in a form that identifies the originating Client. Data used to improve the Proprietary Database is aggregated and anonymised before any use that extends beyond the originating Client's account.

4.3 Data Generated from Platform Search Features

When a Client or Agent uses the Platform's business search features, the Platform may call third-party APIs including the Google Places API to return search results. Results returned from third-party APIs are cached temporarily in accordance with the terms of those providers. P23 Africa may create original Business Records within the Proprietary Database based on information returned by these searches. These records are owned by P23 Africa and are not subject to third-party API caching restrictions.

4.4 Ownership of Proprietary Database

The Proprietary Database, including all Business Records compiled by P23 Africa from any source, is the intellectual property of P23 Africa Ltd. The Client's use of Business Records through the Platform does not confer any ownership or licence rights in those records beyond what is necessary to use the Platform during an active subscription.

5. GPS Routing Data and Mapping Infrastructure

5.1 Agent GPS traces generated during working sessions are processed by P23 Africa to build and improve routing intelligence for African markets. This includes map matching GPS traces to road segments, building travel time estimates, identifying unmapped or changed road conditions, and developing a proprietary routing data layer.

5.2 Routing data derived from Agent GPS traces is processed in aggregated form. Individual Agent movement data is not shared with third parties. Aggregated road segment intelligence derived from multiple Agent traces across multiple Clients may be used to improve the Platform's mapping and routing capabilities for all users.

5.3 The Platform uses third-party mapping and routing services including Mapbox and Google Maps Platform. Use of those services through the Platform is subject to those providers' own terms of service. P23 Africa does not guarantee the accuracy of routing or map data provided by third parties.

6. Agentic Features and KPI-Based Operations

6.1 The Platform includes agentic features that automatically generate suggested routes, prioritise business visits, and decompose Client-set KPIs into daily Agent workplans without requiring manual task assignment by a manager.

6.2 Suggested routes and visit priorities generated by the Platform are recommendations only. Agents and managers retain full discretion to deviate from system suggestions. P23 Africa accepts no liability for commercial outcomes resulting from the Platform's prioritisation recommendations.

6.3 KPI targets set within the Platform are the Client's responsibility. P23 Africa does not validate whether KPI targets are achievable or appropriate for a given territory and accepts no liability for failure to meet targets.

7. Data Protection and Compliance

7.1 P23 Africa processes personal data in accordance with UK GDPR and its Privacy Policy. Where Clients operate in Nigeria, Kenya, South Africa, or other African jurisdictions, the Client is responsible for ensuring their own use of the Platform complies with applicable local data protection law including the NDPR and POPIA.

7.2 The Client is the data controller in respect of Agent personal data collected through Client use of the Platform. P23 Africa acts as a data processor in respect of that data. A Data Processing Agreement is available on request and is incorporated into these Terms by reference where required by applicable law.

7.3 The Client warrants that Agents have been informed of and have consented to location tracking during working sessions to the extent required by applicable law in the jurisdiction where they are operating.

8. Intellectual Property

8.1 All intellectual property rights in the Platform, including software, design, algorithms, data models, and the Proprietary Database, are owned by P23 Africa Ltd. These Terms do not transfer any intellectual property rights to the Client.

8.2 The Client retains ownership of its own internal commercial data, including customer lists, pricing data, and sales records that the Client uploads to or creates within the Platform independently of the Platform's agentic features. P23 Africa will not use the Client's independently created commercial data for any purpose other than providing the Platform services to that Client.

9. Limitation of Liability

9.1 The Platform is provided on an as-is basis. P23 Africa does not warrant that the Platform will be uninterrupted, error-free, or that map and routing data will be accurate in all territories.

9.2 P23 Africa's total liability to the Client under or in connection with these Terms shall not exceed the fees paid by the Client in the three months preceding the event giving rise to the claim.

9.3 P23 Africa accepts no liability for indirect, consequential, or economic losses including loss of revenue, loss of business, or loss of data arising from use of or inability to use the Platform.

10. Modifications to These Terms

P23 Africa may update these Terms from time to time. Clients will be notified of material changes by email at least 30 days before they take effect. Continued use of the Platform after the effective date of updated Terms constitutes acceptance of those Terms.

11. Governing Law

These Terms are governed by the laws of England and Wales. Any disputes arising under or in connection with these Terms shall be subject to the exclusive jurisdiction of the courts of England and Wales, except where mandatory local law in the Client's jurisdiction requires otherwise.

12. Contact

For questions relating to these Terms or to request a Data Processing Agreement, please contact P23 Africa Ltd at:

P23 Africa Ltd

Registered in England and Wales

legal@p23africa.com

These Terms of Service were prepared for internal review and should be reviewed by qualified legal counsel before publication. Factory 23 is a product of P23 Africa Ltd.